NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH, COURT – II
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, CHENNAI BENCH, HELD ON 10.03.2026 AT 10.30 A.M. THROUGH VIDEO CONFERENCING:

PRESENT: SHRI. JYOTI KUMAR TRIPATHI, HON'BLE MEMBER (JUDICIAL)
SHRI. RAVICHANDRAN RAMASAMY, HON'BLE MEMBER (TECHNICAL)

PETITION NUMBER	**: C.P.(CAA)/51(CHE)2025**
APPLICATION NUMBER	**: C.A.(CAA)/60(CHE)2024**
NAME OF THE APPLICANT	**: Shasun Leasing and Finance Private Limited & 1Anr**
NAME OF THE RESPONDENT(S)	**: --**
UNDER SECTION	**: Sec-230-232 of CA, 2013**

ORDER

Vide separate order pronounced in open court, **C.P.(CAA)/51(CHE)2025** is Allowed.

Sd/-
RAVICHANDRAN RAMASAMY
Member (Technical)

Sd/-
JYOTI KUMAR TRIPATHI
Member (Judicial)

jp

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - II, CHENNAI

CP (CAA) / 51 (CHE) / 2025

In

CA (CAA) / 60 (CHE) / 2024

(Filed under Sections 230 to 232 of the Companies Act, 2013)

In the matter of Scheme of Arrangement and Amalgamation between Shasun Leasing and Finance Private Limited (Transferor Company) and Axxelent Pharma Science Private Limited (Transferee Company) and their respective Shareholders and Creditors and their respective Shareholders

SHASUN LEASING AND FINANCE PRIVATE LIMITED,
CIN: U65921TN1988PTC170755,
Having its Registered Office at
Old No. 1, New No. 2, Jagadeeswaran Street,
Thygarayanagar, Chennai – 600017,

... 1st Petitioner / Transferor Company

With

AXXELENT PHARMA SCIENCE PRIVATE LIMITED,
CIN: U24110TN2019PTC131943,
Having its Registered Office at
No. 3, Jagadeeswaran Street,
Thygarayanagar, Chennai - 600017,

... Petitioner / Transferee Company / Resulting Company

Order Pronounced on ***10th March 2026***

CORAM

Shri. JYOTI KUMAR TRIPATHI, MEMBER (JUDICIAL)
Shri. RAVICHANDRAN RAMASAMY, MEMBER (TECHNICAL)

Present: -

For Petitioner	*: Mr. Arvindh Pandian, Mr. Pawan Jhabakh, Advocates*
For Income Tax Depar.	*: Mr. Raj Jhabakh, Advocate*
For Official Liquidator	*: Mr. B. Palani, Advocate*
For Reginal Director	*: Mr. Avinash Krishnan Ravi, Advocate*

ORDER

(Hearing Conducted though Hybrid Mode)

1. This Joint Company Petition has been filed by **SHASUN LEASING AND FINANCE PRIVATE LIMITED** *(hereinafter referred as 1st Petitioner Company / Transferor Comapny),* and **AXXELENT PHARMA SCIENCE PRIVATE LIMITED** *(hereinafter referred as Petitioner Company / Transferee Company)* under section 230-232 of the Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'the Rules') for approval of the Scheme of Arrangement (*hereinafter referred to as the '**SCHEME'***) proposed between the Petitioners Company.

2. **1ST MOTION APPLICATION**

The Petitioner Companies had filed First Motion Application vide CA (CAA) / 60 (CHE) / 2024 and sought directions for Dispensation/ Convening the meeting of its Members/ Shareholders and Creditors regarding approval of the proposed Scheme. Based on the submissions, this Tribunal vide Order dated 29.04.2025 has ordered to dispense of the meetings of Equity Shareholders/ Members, Secured Creditors of both Companies and Unsecured Creditors of Transferor Company and to convene the meetings of Unsecured Creditors of Transferee Company.

3. **SCHEME SUMMARY**

The Scheme provides for the Arrangement between **SHASUN LEASING AND FINANCE PRIVATE LIMITED** With **AXXELENT PHARMA SCIENCE PRIVATE LIMITED** their respective Shareholders and Creditors. Both the Petitioner Companies come under the jurisdiction of this Tribunal.

4. **RATIONALE OF THE SCHEME**

The rationale and benefits of the Scheme are briefed in Clause E of the Preamble of the Scheme as follows,

RATIONALE FOR THE SCHEME OF AMALGAMATION:

1. The Amalgamation will result in the Promoters of the Transferor Company directly holding shares in the Transferee Company, which will not only lead to simplification of the shareholding structure and reduction of shareholding tiers but also demonstrate the Promoters' direct commitment to and engagement with the Transferee Company;

2. The Amalgamation will enable greater focus of the management on the business and facilitate in creating enhanced value for Transferee Company's shareholders and allow a focused strategy in operations, which would be in the best interest of all its shareholders, creditors, and stakeholders;

3. The Amalgamation would result in financial resources being efficiently merged and pooled leading to more effective and centralized management of funds, greater economies of scale, stronger base for future growth and reduction of administrative overheads, optimize the valuation of the consolidated entity and enable fund raising for future expansion.

4. The Amalgamation would also improve and consolidate internal controls and functional integration at various levels of the organisation such as information technology, human resources, finance, legal and general management leading to an efficient organisation capable of responding swiftly to volatile and rapidly changing market scenarios

5. Further, consolidation of companies would result in reduction in regulatory and legal compliances and avoid multiple records keeping.

It is stated that the Board of Directors of both the Petitioner Companies have proposed the Scheme of Amalgamation. This Scheme provides for various other matters consequential or otherwise integrally connected herewith.

5. In the second motion Petition filed by the Petitioner Companies, this Tribunal vide order dated 05.08.2025 directed the Petitioner Companies to issue

notice to the Statutory / Regulatory Authorities concerned as well as directed to issue paper publication.

6. In compliance with the said directions issued by this Tribunal, the Petitioner Companies effected paper publications in ***"Indian Express"*** in English (All India Edition) and ***"Dina Thanthi"*** in Tamil (Tamil Nadu Edition). The notices were also served to

(i) Regional Director, Southern Region, Chennai,

(ii) Official Liquidator,

(iii) Income Tax Department and other regulators.

(iv) Sectoral Regulatory Authorities, if any.

Pursuant to the service of notice of the petitions, the following statutory authorities have responded.

8. STATUTORY / REGULATORY AUTHORITIES

8.1. REGIONAL DIRECTOR

8.1.1. The Regional Director (RD), Southern Region to whom the notice was served, has filed its report on 23.09.2025 and has expressed its 'Observations' and 'No Objection' to the Scheme as follows,

> *"4. That as per clause 1.3 of Part-I of the Scheme, the Appointed Date is 30 days after the Effective date or such other date as may be fixed or approved by the Hon'ble NCLT or such other Competent Authority/ Appropriate Authority. Further, as per Clause 1.7 of the Scheme, Effective Date means the last of the dates on which the necessary certified copy of the order under Section 230 to 232 of the Act and other applicable provisions of the Act and duly filed with the Registrar of Companies by all the companies. In this regard, it is submitted that the appointed date has not been provided in the Scheme. However, Record date 1, 2 & 3 have been provided in view of determining the holders of NCRPS to whom 6% NCRPS would be issued and allotted in lieu of accumulated unpaid preference dividends and determining the NCRPS holders of the Transferee company to whom equity shares of face value of Rs.10/- each shall be issued and determining the shareholders of transferor company to whom shares shall be issued & allotted. Hence, petitioner Companies may be directed to fix Appointed Date as per the MCA General Circular number 9/2019*

dated 29.08.2019, since the clause is not in accordance with the provision of Section 232(6) of the Companies Act, 2013 which inter-alia provides that the scheme under this Section shall clearly indicate an appointed date from which it shall be effective and the Scheme shall deemed to be effective from such date and not at a date subsequent to the appointed date.

5. That Clause 14 of Part-IV of the scheme provides that upon the scheme become the effective, all employees, if any, of the Transferor Company who are in employment of the Transferor Company, as on the Effective Date, shall become the employees of the Transferee Company with effect from the Effective Date without any break or interruption in service and on terms and conditions no less favourable than those on which they were engaged by the Transferor Company immediately preceding the Effective Date.

….

9. That Clause 17 of Part IV of the Scheme provides that upon the Scheme becoming effective and with effect from the Appointed Date, the equity shares of the Transferee Company held by Transferor Company as on the Appointed Date shall stand cancelled. Accordingly, the share capital of the Transferee Company shall stand reduced and cancelled to the extent of face value of such shares.

10. That Clause 25 of Part-V of Scheme provides that, on the Scheme becoming Effective, the Transferor Company shall stand dissolved without the process of winding up and the Board and any committees thereof of the Transferor Company shall without any further act, instrument or deed be and stand discharged. On and from the Effective Date, the name of the Transferor Company shall be struck off from the records of the concerned Registrar of Companies.

11. That as per the Chartered Accountant certificate there are Two (02) Equity Shareholders in the Transferor Company as on 31.07.2024. This Hon'ble Tribunal vide order dated 29th April 2025 in CA (CAA)/60(CHE)/2024, had stated that consent by way of affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is dispensed with.

….

16. That as per the Chartered Accountant Certificate there are One Hundred Sixty Six (166) Unsecured Creditors in the Transferee Company as on 31.07.2024. The Hon'ble NCLT Chennai Bench vide its order in CA (CAA)/60(CHE)/2024, dated 29th April 2025 had directed the Transferee company to convene the meeting of Unsecured Creditors on 14.06.2025. Further, appointed Mr. Pavitra Dayalan as the Chairperson of the meeting and Mr. Adith Narayan is appointed as Scrutinizer.

As per the report dated 20.06.2025 of Chairperson, the meeting of the Unsecured Creditors of the Transferee Company was convened on 14th June 2025. As per the Certificate issued by the Chartered Accountant as on 31st July 2024, the Transferee Company had 166 Unsecured Creditors. However, as per the list of Unsecured Creditors as on 30th April 2025 certified by the Chartered Accountant dated 07th May 2025, the transferee company had 227 Unsecured Creditors for an aggregate amount Rs.17,11,15,818/ -. The meeting was attended by Fifty one (51) Unsecured Creditors of transferee company representing debt value of Rs.4,71,03,275/- (Rupees Four Crore Seventy One lakh Three Thousand Two Hundred Seventy Five only). The value of Unsecured Creditors present and voted in favour of the Resolution constitutes Rs.4,12,68,436/- representing 99.68 % of the Unsecured Creditors of the Transferee company who were present and voted.

17. That as per the report dated 18.09.2025 of ROC, Chennai, the Transferor Company and Transferee Company have filed financial statement and annual return for financial year up to financial year 2024-25. Further, reported that No prosecution / technical scrutiny / inspection / complaints are pending against the Transferor Company.

18) That as per petition the Transferor Company has no Secured Creditors whereas as per the MCA21 portal the Transferor Company had 2 Active Charges with one Secured Creditor. In this regard, the Transferor may be directed to submit an affidavit enclosing NOC/ proof showing satisfaction of sald charges/ Consent from the Secured Creditor whose charges are created in the MCA portal after the date of issuance of certification from the Auditor. Register of Charges of the Transferor Company as per MCA portal is enclosed as Annexure- A.

19) That as per petition the Transferee company has 1 (one) Secured Creditors whereas as per the MCA21 portal the Transferee Company had 4 Active Charges with Two Secured Creditors. In this regard, the Transferee may be directed to submit an affidavit enclosing NOC/ Consent from the Secured Creditors whose charges are created in the MCA portal after the date of issuance of certification from the Auditor. Register of Charges of the Transferee Company as per MCA portal is enclosed as Annexure- B.

20) That the petitioner companies may be directed to undertake to comply with the provisions of Section 240 of the Companies Act, 2013 and Section 232(3)(i) of the Companies Act, 2013.

21) That Transferee may be directed to file amended MoA containing amendment to the Capital Clause for record purposes with the Registrar of Companies.

22) The scheme of Amalgamation filed with the application has been examined and submissions have been made herein above more particularly at para 4,18,19,20 & 21. In view of above, it is humbly prayed that this Hon'ble Tribunal may kindly take note of the same and dispose of the matter on merits and pass such order/orders as deemed fit and proper.

8.2. INCOME TAX DEPARTMENT

8.2.1. The Income Tax Department to whom the notice was served and has filed its report on 08.09.2025 and has expressed its 'Observations' as follows:

"3. In addition to the above and without prejudice to the objections in the letter attached, it is submitted that the requirement to send the notice to the concerned department is a procedural requirement and as such does not impact the right of the Department to proceed in accordance with the provisions of the Income Tax Act, 1961. Therefore, it is submitted that this Hon'ble Tribunal, may take the objections on record without prejudice to the rights 2 of the Department to take all appropriate proceedings under the provisions of the Income Tax Act, 1961 to protect the interest of the Government revenue including the right to reopen the assessment. Further it is submitted that by filing of this Memo and the report of the Assessing Officer, the Income Tax Department shall not have deemed to waive its rights to undertake all proceedings under the Income Tax Act, 1961.

4. Reliance is placed on the judgment of the Supreme Court in Marshall Sons & Co India Ltd Vs Income Tax Officer (AIR1997SC1763 & MANU/SC/0407/1997), wherein the Hon'ble Court has held in para 17 of its Judgement as under:

> *"We, however, make it clear that we have not expressed any opinion on the plea of the learned Counsel for the Revenue that the amalgamation itself is a device designed to evade the taxes legitimately payable by the subsidiary company. If the Income Tax authorities think that, they are entitled to raise this question in the proceedings under the Income Tax Act, it is open to them to do so by way of a separate proceeding according to law."*

In line with the judgment of Hon'ble Supreme Court, it is stated that the Income Tax Department therefore reserves their right to proceed against the Petitioner Companies through independent proceedings under the provisions of the Income Tax and it is reiterated that filing of the present memo shall not in any manner amount to waiving its rights to proceed against the Petitioner Companies and pass orders in accordance with law.

It is prayed that this Hon'ble Tribunal maybe please to take the memo and the letter on record and consider the same as the representation of the Income Tax Department as per Section 230 of Companies Act, 2013 and pass such other order(s) as this Hon'ble Tribunal may think fit in the facts and circumstances of the case."

It is noticed from the demand analysis of ITBA module that the following income-tax demands are pending in the case of M/s.Shasun Leasing & Finance PVT LTD (PAN: AABCS0487K) which is tabulated as under.

S.No	AY	Demand Section	Date of order	Demand Outstanding	Remarks
1.	2009-10	1431a	31/12/2010	Rs.1,59,910/-	-

1. Hence, it is requested that the payment of above outstanding demand by the transferor company may be ensured before ordering the amalgamation or payment of the same by the transferee company after amalgamation.
2. In case, post amalgamation, if any information suggesting escapement of income is received by this office relating to the PAN of the Transferor Company, the Department shall initiate such proceedings for assessment of the same in the case of the transferred company and the transferee company shall pay the demand that may arise on account of assessment proceedings.
3. The above representation/objection may be considered before the scheme of amalgamation is finalized.

The above representation may be considered before the scheme of Amalgamation is finalized.

8.2.3. It is stated that in the present scheme of Amalgamation even though the Transferor Company gets dissolved, the liabilities of the same will be delved upon this Petitioner Company/ Transferee Company and therefore the Income Tax Department can proceed with their proceedings if any and approval of this Scheme does not cause any prejudice.

8.3. OFFICIAL LIQUIDATOR

8.3.1. The Official Liquidator to whom the notice was served, has filed its report on 23.09.2025 and has expressed its 'Observations' and 'No Objection' to the Scheme as follows,

"2. It is submitted that the said Chartered Accountant firm has verified the books and accounts and other records of the Transferor Company for the period of 4 years

from 1/4/2020 to 31/03/2024 and submitted their report dated 16/7/2025 received on 21/7/2025. Copy of the report of the Chartered Accountant is enclosed herewith and marked as Annexure for kind perusal of this Hon'ble Tribunal. It is reported from the scrutiny/inspection report of the Chartered Accountant dated 16/7/2025 that:

….

3. That in accordance with the basis of notice served on 19/5/2025 received on 19/5/2025 and notice of petition dated 18//8/2025 received on 18/8/2025 to the Official Liquidator by the Transferor Company and also considering the conclusion made by the Chartered Accountants in their report dated 16/7/2025 as detailed above in para 2 of the report and further information of audited financials as at 31/03/2025 and unaudited financials as at 31/8/2025 received on 23/9/2025, the specific representation of Official Liquidator in respect of Transferor Company and connected issues in the composite scheme is humbly submitted as follows :-

(i) Appointed Date is beyond effective date:

That the last sentence of the 3rd sub para of Clause (e) of the Scheme (Rationale) disclose to the effect that the Board of the Transferee company are of the opinion that prior to amalgamation, issue of New NCRPS in lieu of the amount of Accumulated Unpaid Preference Dividend due on the NCRPS in accordance with the provisions of Section 55(3) of the Companies Act is in the best interests of the NCRPS Holders and the Company. Further, the 4th sub para of the same clause further provides that conversion of the NEW NCRPS of the Transferee Company into equity shares prior to the amalgamation of Transferor Company with the Transferee Company is appropriate and would be beneficial to the shareholders of the Transferee Company. It is submitted to this Hon'ble Tribunal that the corporate actions / scheme of arrangement proposed in part II and Part III of the scheme can be taken up for implementation in sequential order through the same scheme before amalgamating the transferor company with the transferee company through the same composite scheme of arrangement all with the same Appointed Date (but in sequence as to be prescribed in the Scheme). However, did not specify any past date as the appointed date for the amalgamation of Transferor Company with the transferee company instead it seeks to fix it as 30 days after the effective date. There

cannot be any situation that the appointed date is fixed beyond the effective date, as the transferor company gets dissolved on the effective date and accordingly transfer and vesting of the undertaking of the transferor company with the transferee company shall take place before the dissolution date/ effective date. Hence, the Hon'ble Tribunal may be pleased to direct the companies to clarify the same as to why the appointed date is not fixed already and seeks to postpone beyond the effective date.

(ii) Specific calendar date is not given as Appointed Date, hence further compliances required:

That, the clause 1.3 of Part I of the scheme define Appointed Date as 30 days after the Effective Date. The clause 1.7 of Part I of the Scheme define effective date as the date on which certified copies of the order are filed with RoC by both the companies in the scheme. In this regard, it is noticed that the scheme enable the companies to defer bringing the appointed date / effective date into effect into infinite time by delaying the filing of orders to RoC instead of filing it within 30 days. Hence, the appointed date (30 days from effective date) and effective date (date of actual filing with RoC) is future oriented based on decisions of the management of the companies in the scheme without any fixed set timeline. Hence, this Hon'ble Tribunal may be pleased to direct the companies to amend the Clause 1.7 of Part I of the scheme bringing time limit of 30 days prescribed under 232(5) of the Companies Act 2013, and further direct the companies to amend the Clause 1.3 of Part I of the Scheme to decide and fix the appointed date which shall be a date before sanction of the scheme by this Hon'ble Tribunal OR direct the companies to fix a appointed date immediately and submit an undertaking intimating the same before this Hon'ble Tribunal. It is further submitted that the scheme recognized the 31.7.2024 as a date for record date for the purpose of issue of NCRPS and the same date can be taken as appointed date as well.

(iii) Appointed Date not known as on date, requirement of further report of Official Liquidator upto the appointed date:

That the appointed date is future event based and not a date already determined, and accordingly the appointed date (amalgamation date) is not known as on date, as detailed

in sub-para (i) & (ii) above. The Official Liquidator submits report / representation to this Hon'ble Tribunal mainly reporting on the amalgamating company that is getting dissolved without winding up through the scheme, in this case, M/s Shasun Leasing and Finance Ltd. For this purpose, Official Liquidator submits report after examination of the transactions of the amalgamating company till amalgamation date (transfer date) as to whether there are any prejudicial transactions, if any, that were carried on by the amalgamating company on or before such transfer date (amalgamation date/ appointed date). However, in this case since the appointed date is not determinable yet, the Official Liquidator has examined the transactions (through CA appointed in this behalf) up to the latest financials available i.e., up to financial year ending 2023-24, and such examination is required to be extended up to the amalgamation date before submitting the final report covering the transactions of the amalgamating company for the period up to a day prior to such appointed date. Hence, the present report of Official Liquidator covers the period up to 31.3.2024 and not up to the amalgamation date, and hence this Hon'ble Tribunal may be pleased to direct the companies to issue further notice to the Official Liquidator once appointed Date determined and intimated to this Hon'ble Tribunal as per sub-para (ii) above, so that the Official Liquidator can file further report on the transactions from 1.4.2024 till the appointed date to be determined. However, it is further submitted that the transferor company has furnished its audited financials for subsequent period 2024-25 and unaudited financials from 1.4.2025 to 31.8.2025 recently and the same has been examined by the Official Liquidator without the assistance of the Chartered Accountant and this report covers the period up to 31.812025. Accordingly, the Hon'ble Tribunal may be pleased to direct the companies to fix an appointed date immediately and submit a further undertaking to this Hon'ble Tribunal that during the intervening period the transferor company do not undertake any transactions other than regular business transactions at arm's length till the appointed date.

(iv) Record Date undertaking to fix immediately after sanction:

That the record date 3 as defined in clause 1.17 of Part I of the scheme dealing with amalgamation of transferor company with the transferee company provide for fixing

record date mutually by the respective board of directors of transferor company and transferee company. In this regard, this Hon'ble Tribunal may be pleased to direct the companies to submit an undertaking that they would fix the record date 3 immediately after sanction of the scheme and before the effective date / dissolution date.

(v) Auto modification of scheme without prior consent of Tribunal:

That, the clause (g) before part I of the scheme providing for auto modification of content of the scheme, post its sanction by this Hon'ble Tribunal, it is submitted that such auto modification of the content of the scheme to be in compliance with Income Tax Law etc., without the previous approval / sanction of this Hon'ble Tribunal will be in violation of section 231(1)(b) of the Companies Act, 2013 as every modification / auto modification of the content of the Scheme requires prior approval by this Hon'ble Tribunal. Hence, this Hon'ble Tribunal may be pleased to direct the Transferor and Transferee Companies to delete / modify the clause (g) of the scheme by way of amendment to the scheme proposed, so as to ensure that no such auto amendment / modification of the Scheme takes place, post its sanction by this Hon'ble Tribunal or to submit an undertaking to this Hon'ble Tribunal to the effect that such auto modification of the content of the scheme will not take effect automatically and will not be implemented without prior approval of this Hon'ble Tribunal.

(vi) That the clause 18.1 of the scheme recognises that the inter party transactions between transferor company and transferee company shall be considered as intra-party for all purposes till the appointed date and the same shall stand cancelled. In this regard, it is submitted to this Hon'ble Tribunal that inter party transactions post appointed date only will be considered as intra party transactions and hence the word 'till the appointed date' is a typo error and hence the Hon'ble Tribunal may be pleased to direct the companies to submit an undertaking to this Hon'ble Tribunal to not to consider the inter party transactions up to the appointed date as intra party transactions of the transferee company.

4. Therefore, it is submitted that the Official Liquidator is of the humble opinion that the affairs of the Transferor Company appear to have not been conducted in a manner

prejudicial to the interest of its members or to public interest subject to representation at para 3 above.

5. In view of the above, the Official Liquidator humbly submits that the above facts for consideration of this Hon'ble Tribunal and prays for the following orders:-

a. To take this report on record and consider the report of M/s. R. Swaminathan & Co., Accountants and issue directions to the Transferor and Transferee Companies, as deem fit;

b. To fix remuneration payable to the auditor who has scrutinized the affairs of the Transferor Company for the period of 4 years from 1/4/2020 to 31/03/2024 (Appointed date not known yet);

c. To direct the Petitioner Companies to deposit such remuneration / fee within the stipulated period as may be prescribed by this Hon'ble Tribunal,

d. And pass such order/orders as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case.

8.4. REPLY TO THE STATUTORY OBJECTIONS

The Petitioner companies have filed their response to the statutory objections and the same is extracted below:

"Reply to the Regional Director:

Our Response

That in this regard, the Petitioner Companies clarify that, as per Clause 1.3 of the Scheme, the Appointed Date is 30 days after the Effective Date.

However, after considering the submissions of the Official Liquidator, the Petitioner Companies hereby submit that the various parts of the Scheme would be implemented in the following manner (as stated in Para 2 of this affidavit) above:

D. **Part II** - Issuance of New NCRPS by the Transferee Company in lieu of the amount of Accumulated Unpaid Preference Dividend due and payable to the NCRPS Holders within 20 (Twenty) days from the date of receipt of certified copy of the order of the Hon'ble Tribunal sanctioning the Scheme;

E. **Part III** - Conversion of the New NCRPS into equity shares of the Transferee Company within 20 (Twenty) days from the date of receipt of certified copy of the order of the Hon'ble Tribunal sanctioning the Scheme;

F. **Part IV** - Amalgamation of Transferor Company into and with the Transferee Company within 30 (Thirty) days from the date of receipt of certified copy of the order of the Hon'ble Tribunal sanctioning the Scheme which shall be considered as the Appointed Date and the Effective Date in accordance with section 230 (5) & (6) of the Companies Act 2013.

It is hereby clarified that, as per Circular No. F.No.7/12/2019/CL– I dated 21-08-2019 issued by the Ministry of Corporate Affairs, Appointed Date can be tied to an occurrence of event and need not necessarily be a specific calendar date. In the present case, the Appointed Date is linked to the event being the Effective Date and therefore, is in compliance with the provisions of Section 232(6) of the Companies Act, 2013.

Our Response

That in this regard, the Petitioner Companies hereby submit that the Transferor Company had obtained secured loans aggregating to INR 50,00,000 from Nationwide Finance Limited ("**Lender**") in 1996 against which 2 Active Charges are being reflected on the MCA Portal. Further, it is hereby stated that the same has already been fully repaid by the Transferor Company. However, considering the lender has been untraceable, the Transferor Company has been unable to file Form CHG-4 with the Registrar of Companies for the satisfaction of charge. Accordingly, despite the full repayment of the loan, the charge is still reflecting on the MCA Portal. In this connection, we hereby attach the copy of the letter filed with the Registrar of Companies by the Transferor Company requesting them to remove the charge as **Annexure B.**

Our Response

The Transferee Company had 1 (One) Secured Creditor as on 31st July 2024. The Transferee Company had obtained the consent affidavit from such Secured Creditor for the Scheme. The CA certified list of Secured Creditors of the Transferee Company as on 31st July 2024 along with the consent affidavit had been attached with the Company Scheme Application. Basis the said consent affidavit, the Hon'ble Tribunal Chennai Bench, vide its order dated 29th April 2025, dispensed with the meeting of the Secured Creditors. Further, the Board of Directors of the Transferor Company and Transferee Company approved certain amendments to the Scheme in their respective meetings held on 6th March 2025. In this connection, the sole Secured Creditor of the Transferee Company has also approved the amendments to the Scheme vide their consent affidavit. The CA certified list of Secured creditors of the Transferee Company as on 31st March 2025 containing 1 (one) Secured Creditor along with their consent affidavit approving the amendments to the Scheme has been attached to the Company Scheme Petition.

Further, the Petitioner Companies hereby state that, out of the 4 Active Charges reflecting on the MCA Portal of the Transferee Company, 2 charges pertaining to an additional loan obtained from IDFC First Bank Limited. The charge has been created as recently as on 7th July 2025 i.e., post the date of CA certificate as on 31st March 2025. It may be noted that there is no requirement under the Companies Act, 2013 to obtain NOC/consents of the creditors of the Companies post dispensation of the meeting of the creditors by the Hon'ble Tribunal under Section 230(9) of the Companies Act, 2013. Accordingly, the Petitioner Companies are not required to submit NOC/ Consent from the Secured Creditors whose charges are created in the MCA portal after the date of issuance of certificate from the CA.

The Petitioner Companies also state that the Transferee Company will remain in existence post the effectiveness of the Scheme and the Secured Creditors will be paid off in the ordinary course of business. Accordingly, the interests of the Secured Creditors will not be affected/impacted pursuant to the Scheme

Our Response

That in this regard, it is hereby submitted that the Petitioner Companies undertake to comply with the provisions of Section 240 of the Companies Act, 2013 which provides that the liability in respect of offences committed under the Companies Act 2013 by the officers in default of the Transferor Company prior to its amalgamation shall continue after such amalgamation.

Further, the Petitioner Companies undertake to comply with the provisions of Section 232(3)(i) of the Companies Act, 2013 in respect of fees payable by the Transferee Company for increase of authorized share capital on account of amalgamation of Transferor Company, as applicable.

Our Response

That in this regard, it is hereby submitted that the Transferee Company undertakes to comply with the directions that may be given with respect to filing of the amended Memorandum of Association with the Registrar of Companies containing amendment to the Capital Clause for record purposes

Reply to the Official Liquidator:

Our Response

As far as the responses concerning Point A to D are concerned, the Petitioner Companies state and submit that the Composite Scheme of Arrangement amongst Shasun Leasing and Finance Private Limited and Axxelent Pharma Science Private Limited and their respective shareholders **("Scheme")** contemplates the following:

A. **Part II** deals with the issuance of New NCRPS by the Transferee Company in lieu of the amount of Accumulated Unpaid Preference Dividend due and payable to the NCRPS Holders as on the Effective Date;

B. **Part III** deals with the conversion of the New NCRPS into equity shares of the Transferee Company as on the Effective Date;

C. **Part IV** deals with the amalgamation of Transferor Company into and with the Transferee Company as on the Appointed Date (i.e.,) from the Effective Date

After considering the submissions of the Official Liquidator, the Petitioner Companies hereby submit that the various parts of the Scheme would be implemented in the following manner:

A. **Part II** - Issuance of New NCRPS by the Transferee Company in lieu of the amount of Accumulated Unpaid Preference Dividend due and payable to the NCRPS Holders within 20 (Twenty) days from the date of receipt of certified copy of the order of the Hon'ble Tribunal sanctioning the Scheme;

B. **Part III** - Conversion of the New NCRPS into equity shares of the Transferee Company within 20 (Twenty) days from the date of receipt of certified copy of the order of the Hon'ble Tribunal sanctioning the Scheme;

C. **Part IV** - Amalgamation of Transferor Company into and with the Transferee Company within 30 (Thirty) days from the date of receipt of certified copy of the order of the Hon'ble Tribunal sanctioning the Scheme which shall be considered as the Appointed Date and the Effective Date in accordance with section 230 (5) & (6) of the Companies Act 2013.

Further, the Transferor Company undertakes to not undertake any transactions other than regular business transactions at arm's length till the Appointed Date

Our Response

In this regard, the Petitioner Companies undertake that any amendment to the Scheme pursuant to clause (g) before Part I of the Scheme will not take effect automatically and will not be implemented without prior approval of this Hon'ble Tribunal.

Our Response

In this regard, the Petitioner Companies undertake not to consider the inter party transactions between the Transferor Company and Transferee Company as intra party transactions up to the Appointed Date.

Reply to the Income Tax Department:

Our Response

In this regard, the Petitioner Companies hereby submit that that the abovementioned demand of INR 1,59,910 along with Interest of INR 5,31,714 has been paid by the Transferor Company on 2nd September 2025. The challan evidencing payment of such tax and interest is attached herewith marked as **Annexure A.**

Further, it is hereby submitted that all tax assessment proceedings / appeals of whatsoever nature by or against the Transferor Company, pending at the Effective Date, shall be continued and enforced by or against the Transferee Company. In case of any tax liability arising pursuant to applicable provisions of Income Tax Act, 1961 on Transferor Company prior to the Effective Date, the same shall be discharged by the Transferee Company.

9. ACCOUNTING TREATMENT

It is stated that the certificates issued by the Statutory Auditors certifying the Accounting Treatment of the petitioner companies are in compliance with Section 133 of the Companies Act, 2013 are placed on record.

10. VALUATION

In Pg. No. 291-313, Volume 2 of the application, it is stated that upon the Scheme becoming effective, Transferee Company shall, without any further application or deed, but subject to necessary approvals, if any, being granted, issue and allot equity shares, credited as fully paid-up, to the extent indicated below, to the shareholders of Transferor Company as on the Effective Date or to such of their respective heirs, executors, administrators or other legal representatives or their successors in title, as may be recognized by the Board of Transferor Company in the following proportion on the basis of the valuation report dated 7th August 2024 issued by Transaction Square Advisory LLP, a Registered Valuer holding Certificate of Practice No. IBBI/RV-E/06/2023/194 and approved by the Board of Transferee Company and Transferor Company:

RECOMMENDATION OF FAIR VALUE OF EQUITY SHARES OF APSPL FOR PROPOSED CONVERSION.

Based on the considerations, information and explanations given to us and subject to scope, limitations and assumptions specified below, we estimate the equity value of APSPL as at the report date to be ~ INR 1,686.8 Million and per equity share value of APSPL to be ~ INR 65.6 each.

RECOMMENDATION OF SHARE EXCHANGE RATIO FOR THE PROPOSED AMALGAMATION.

The fair share exchange ratio has been arrived at on the basis of a relative (and not absolute) equity value of the Transacting Companies for the Proposed Amalgamation based on the methodology mentioned herein earlier. Suitable rounding off have been carried out wherever necessary to arrive at the recommended share exchange ratio.

Refer Annexure 1 for detailed share exchange ratio related workings.

In light of the above and on a consideration of all the relevant factors and circumstances as discussed and outlined herein above including scope, limitations and assumptions

describe in this report and the engagement letter, we recommend the share exchange ratio as follows:

To the equity shareholders of SLFPL

1,76,036 (One Lakh Seventy-Six Thousand and Thirty-Six) equity shares of APSPL having a face value of INR 10 each fully paid up shall be issued for every 10,000 (Ten thousand) equity shares held in SLFPL having a face value of INR 10 each fully paid up.

Summary of share exchange ratio

Amalgamation of SLFPL ('Transferor Company') with APSPL ('Transferee Company'):

Company	Transferor/ Transferee	Annexure	Value per equity share (INR)	Share exchange ratio	Recommended Share Exchange Ratio (Number of equity shares of Transferee Company to be issued for every 10,000 shares of Transferor Company)
SLFPL	Transferor	Annexure 2	1,154.3	17.6	1,76,036
APSPL	Transferee	Annexure 3	65.6		

11. OBSERVATIONS OF THIS TRIBUNAL

11.1. This Tribunal is of the view that the scheme as contemplated by the Petitioner companies seems to be *prima facie* not, in any way detrimental to the interest of the members of the Companies. In view of the absence of any material objections from any statutory authorities and since all the requisite statutory compliances have been fulfilled, this Tribunal sanctions the Scheme of Amalgamation as well as the prayer made therein.

11.2. Notwithstanding the above, if there is any deficiency found or, the violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal will not come in the way of action being taken, albeit, in accordance with the law, against the concerned persons, directors and officials of the petitioners.

11.3. While approving the Scheme as above, it is clarified that this order should not be construed as an order in any way granting exemption from payment of stamp duty, taxes or any other charges, if any, payment is due or required in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law.

12. THIS TRIBUNAL DO FURTHER ORDER

(i) That all properties, rights and interests of the Transferor Companies shall, pursuant to Section 232(3) of the Companies Act, 2013 without further act or deed be transferred to and vest in or be deemed to have been transferred and vested in the Resulting Company in terms of the Scheme.

(ii) That all the liabilities, powers, engagements, obligations and duties of the Transferor Companies shall pursuant to Section 232(3) of the Companies Act, 2013 without further act or deed be transferred to and vest in or be deemed to have been transferred and vested in the Resulting Company in terms of the Scheme.

(iii) That the 'Appointed Date' for the Scheme shall be **01.04.2023** for the Amalgamation and **01.04.2022** for the Demerger as mentioned in Clause 1 (f) and (k) of the Scheme.

(iv) That the 'Effective Date' shall be defined as per the Clause 1(o) Part A of the scheme.

(v) That the 'Record Date' for the Scheme shall be defined as per the Scheme.

(vi) That all proceedings now pending by or against the Petitioner Companies shall be continued by the Resultant Company.

(vii) That all the employees/workmen of the Petitioner Companies in service on the date immediately preceding the date on which the Scheme finally takes effect shall become the employees of the Resultant Company without any break or interruption in their service with all the benefits.

(viii) That the Resultant Company shall file the revised Memorandum and Articles of Association with the Registrar of Companies, concerned and further make the requisite payments of the differential fee (if any) for the enhancement of authorized capital of the Resultant Company after setting off the fees paid by the Petitioner Companies.

(ix) That the Petitioner Companies, shall within thirty days of the date of receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Registrar of Companies shall place all documents relating to the 1st Petitioner Company registered with him on the file kept by him in relation to 2nd Petitioner Company shall be consolidated accordingly.

(x) That any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

13. Accordingly, the Company Petition **CP (CAA) / 51 (CHE) / 2025** stands **Allowed** on the aforementioned terms and is disposed of.

-Sd-

RAVICHANDRAN RAMASAMY
MEMBER (TECHNICAL)

-Sd-

JYOTI KUMAR TRIPATHI
MEMBER (JUDICIAL)